together secretly for a time, there was placed before them the charter of king Henry the First. . . . [A]nd finally it was unanimously agreed that, after Christmas, they should all go together to the king and demand the confirmation of the aforesaid liberties to them." Henry I's Charter of Liberties, used to shore up support for his claim to the throne, had listed fourteen rights of church and barons that the king pledged not to violate. But more importantly, it began, "All the evil customs by which the realm of England was unjustly oppressed will I take away, which evil customs I partly set down here."

This made the Charter an instrument by which the barons could keep on enumerating evil customs. And chief among those was John's continuing taxation. He had demanded yet another scutage to pay for the failed campaign in Western Francia; most of the barons had refused to pay it, but the demand still hovered over them.[7]

When John arrived back in England, he furiously insisted that the scutage be paid at once. At this, the boldest of the English barons gathered and demanded that John affirm the Charter or prepare for war.

John stalled, sending Stephen Langton to negotiate with the barons, promising to hear them as long as they would write out exactly what they meant by "evil customs." In January of 1215, three months after his return to England, he met the leaders of the opposition and received the twelve-item list they had appended to the Charter of Liberties. First on the list was a demand that the king concede his right to "take a man without judgment." Eight was a provision limiting scutage to "one mark of silver" per baron (John's most recent demand had been for three), an amount that could be raised only with the consent of the barons themselves.[8]

No taxation without consent, limitation of the king's power to seize and punish: it was, as the contemporary *Chronicle of Melrose* remarks, "a new state of things . . . in England; such a strange affair as had never been heard." The *Chronicle* is incredulous: "The body wished to rule the head, and the people desired to be masters over the king," it marvels. But John had pushed his barons too far, and the defeat at Bouvines had weakened him just enough for them to push back.[9]

For five months, John put his noblemen off with promises and additional requests for clarification. The twelve-item list grew to forty-nine.* By the last week of April 1215, it had become clear that the king was not going to yield. On May 3, the chief barons of England renounced their allegiance to the crown of England. Two weeks later, a group of the rebels seized London on Sunday morning, while most of the population was busy attending Mass, and installed one of their own as the new acting mayor of the city. "They then . . .